

CUSTOMERS

Privacy Policy

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I. Definitions and scope

The terms used in this document (the "**Customers Privacy Policy**") such as Personal Data or Processing have the meaning given to them by the glossary in **Section VII** of the Customers Privacy Policy or, failing that, by the General Data Protection Regulation (article 4 of the Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of individuals in relation to the Processing of personal data and the free circulation of this data, hereafter "**GDPR**") or the applicable local data protection legislation, if any.

The **Customers Privacy Policy** applies to the customers of AccorInvest hotels (together hereafter referred to as the "**Customers**").

The **Customers Privacy Policy** covers all AccorInvest Entities' activities, from hotel operations to support activities offered to Customers. This Customers Privacy Policy describes how we collect and use your Personal Data during and after your relationship with us, in accordance with the applicable data protection regulations.

As a Customer, your personal data may also be dealt with by the company owner of the trademark of the hotel you stayed in, such as the French company Accor SA as well as by the company that provides management services and other services to the hotels, such as affiliated entities of Accor SA. For the latter, please refer to **Accor Customer Personal Data Protection Charter** (*ctrl + click to follow the link*).

II. Data processing principles

AccorInvest is committed to complying with all the laws and regulations that govern the Processing of Personal Data. Accordingly, and in relation to the provided services, AccorInvest undertakes to apply the following principles:

- **Data collection for specific purposes – lawfulness and fairness of Processing**

Personal Data is collected and processed solely for the purposes and in the contexts described in **Section IV** of the Customers Privacy Policy.

Any Processing of Personal Data by AccorInvest will have a lawful basis (such as consent, the performance of a contract or legal obligation, or the pursuit of a legitimate interest) as required under the GDPR or any other applicable legislation.

- **Transparency**

Personal data is collected and processed in a manner that is transparent and easily understandable to the Customer.

- **Data minimisation, accuracy and storage limitation**

AccorInvest will only collect Personal Data that is adequate, relevant and not excessive, having regard to the purposes for which it is processed as described in **Section IV**.

The Personal Data processed is kept only for the time required for the purposes described in **Section V** and the rules that apply to the storage and archiving of data.

- **Data security**

AccorInvest protects Personal Data from destruction, loss, tampering, disclosure or unauthorised use.

Accordingly, technical and organisational measures such as the management of access rights and computer file security (e.g. passwords, encryption) are implemented to ensure the confidentiality, integrity and availability of the Personal Data.

III. Personal Data collected

As Data Controller, AccorInvest collects and processes different categories of Personal Data.

The Personal Data collected may be:

- identity and identification data (e.g. surname, first name, gender, nationality, date and place of birth, photographs, signature, client identification, passport or ID number)
- contact information (e.g. postal address, e-mail address and telephone number)
- occupation and employer
- information concerning previous stays
- arrival and departure dates
- total cost of the stay
- data from any communication between you and the hotel
- Customer's comments about the hotel
- financial data such as credit card number
- data from CCTV
- data from the magnetic cards and locks for access to the rooms
- family situation
- preferences of stay and interests (for example, smoking or non-smoking room, preferred floor, type of bedding, type of newspapers/magazines, sports, cultural interests, food and beverages preferences, etc.)
- membership of a loyalty program, membership number
- technical data (such as IP address, logs
- list of newsletters that you may subscribe to.

AccorInvest may also exceptionally process certain Special Categories of Personal Data (as defined by the GDPR) such as information revealing handicap, health condition or religious belief derived notably from food preferences in order to provide a possibly tailor-made and secure service adapted to the needs of its Customers.

Where Special Categories of Personal Data are processed, AccorInvest ensures that at least one of the following conditions is met:

- you have given your explicit consent to the processing of your personal data for one or more specified purposes
- processing is necessary for the purposes of carrying out the obligations and exercising specific rights of AccorInvest or yours in the field of employment, social security and social protection law
- the information is made public by you
- processing is necessary to protect your vital interests
- processing is justified by public interest

- processing is necessary for the observation, exercise or defence of a legal claim, or
- processing is necessary for preventive or occupational medicine, medical diagnoses, healthcare or social welfare, or management of health care or social protection services systems.

IV. Purposes and legal basis

The Processing of Personal Data is carried out for a specified explicit and legitimate purpose. A simple Processing purpose may have one or more grounds for the lawfulness of the processing.

The lawful Processing of Personal Data is necessary to achieve the following purposes:

Processing purposes	Legal basis for Processing
Compliance with the applicable legislation and regulation such as: - storing of accounting documents - managing data subject's requests regarding their personal data - regulations related to the entry and stay of aliens (registration forms)	Processing is necessary to comply with a legal obligation.
Management of administrative operations related to: - contracts - orders - invoices - payments - management of Customers' account - financial statistics	Processing is necessary for the performance of the contract to which the Customer is a party. Processing is necessary for the purposes of the legitimate interests pursued by AccorInvest Entities in the management of the operations with Customers. Processing is necessary to comply with a legal obligation.
Responding to requests from the police or from judicial or administrative authorities in the event of an inspection or investigation according to the applicable law.	Processing is necessary to comply with a legal obligation.
Allowing AccorInvest Entities to protect their rights or substantiate any claim , defence or statement in a case or before the judicial and/or administrative authorities, an	Processing is necessary for the purposes of the legitimate interests pursued by AccorInvest Entities in

arbitration tribunal or a mediator, in connection with actions, investigations or an internal or external audit or investigation.	protecting their rights and interests.
Allowing the data subject to access and use AccorInvest's hotels IT tools available at the hotel (e.g. use of hotel's Wi-Fi).	Processing is necessary for the performance of the contract to which the Customer is a party. Processing is necessary for the purposes of the legitimate interests pursued by AccorInvest Entities in protecting their rights and interests.
Ensuring security in particular in respect of: - access to premises (e.g., magnetic cards and locks and CCTV recordings).	Processing is necessary for the purposes of the legitimate interests pursued by AccorInvest Entities in ensuring the security of premises and infrastructure. Processing is necessary to comply with a legal obligation.
Management of reservation (conference rooms, restaurant and accommodation requests)	Processing is necessary for the performance of the contract to which the Customer is a party. Processing is necessary to comply with a legal obligation. Processing is necessary for the purposes of the legitimate interests pursued by AccorInvest Entities in providing you with requested products and services. Processing based on your consent only for sensitive data for managing food preference/allergy.
Managing and improving the quality of the service during the stay at the hotel notably by: - managing access to rooms - monitoring the use of services (telephone, bar, pay TV etc.) - managing the relationship with the Customer before, during and after the stay by collecting his/her preferences regarding the services experienced during the stay.	Performance of a contract with the Customer. Processing is necessary for the purposes of the legitimate interests pursued by AccorInvest Entities in providing the Customer with requested products and services.

Promoting the hotels services notably by: - sending newsletters, promotions, hotel offers, or contacting you by telephone - organize game contests - sharing opinions given about the hotel	Processing is necessary for the performance of the contract to which the Customer is a party in particular when the Customer participates in a game contest. Processing is necessary for the purposes of the legitimate interests pursued by AccorInvest Entities in promoting our services. Processing based on your consent only for sending newsletters, promotions and hotel offers depending on the law applicable in the country of your stay.
Improving hotels services, in particular: - Carrying out surveys and analyses of questionnaires and customer comments - Managing claims/complaints - Developing statistics and carrying out reporting of the same	Processing is necessary for the purposes of the legitimate interests pursued by AccorInvest Entities in improving our services.

V. Data retention

The Personal Data Processed is retained by the AccorInvest Entity in accordance with the retention obligations stipulated by applicable legal and regulatory provisions. In the absence of such legal and regulatory provisions, the Personal Data may be retained for the period necessary for the purposes for which it was Processed.

We may further retain the Personal Data for legal purposes and to protect AccorInvest's rights and interests until the end of the retention period as prescribed by applicable laws.

After the retention period the Personal Data will either be destroyed or anonymised. The anonymisation of the Personal Data means that it can no longer be associated with the Customer.

For more detail, please refer to the Appendix "Data privacy contact e-mail addresses" with regard to your region.

VI. Data recipients and transfers

AccorInvest may transfer Personal Data internally or externally to Recipients if this is necessary to achieve the purposes specified in Section IV.

The Personal Data is shared with AccorInvest's personnel authorized to receive it, and may also be transferred to external Recipients such as:

- suppliers - acting as a data processor - that need the Personal Data to provide services to AccorInvest (e.g. Accor S.A. or its affiliated entities acting as manager of the hotels, IT services providers, auditors)
- financial institutions
- governments, competent authorities and judicial authorities, if required by law or in connection with a criminal investigation or proceedings and in accordance with local regulations
- external advisers (such as lawyers) to assert its rights and defend itself in legal proceedings.

Your Personal Data is also Processed by the French company Accor S.A. and its affiliated companies acting as separate data controller for its own purposes or joint data controller in relation to the Customers personalization program. For more information please refer to **Accor's Customer Personal Data Protection Charter**.

AccorInvest takes appropriate steps to ensure that Personal Data is protected when sharing it with Recipients (internal, external and third parties). In all cases, the transferred data is limited to what is strictly necessary for the purposes for which it is being transferred.

If Personal Data is sent to countries that do not afford the same level of protection as the country in which the Personal Data was collected, AccorInvest will ensure that appropriate safeguards are implemented to manage this transfer (for example through standard contractual clauses).

VII. Rights of the Customers

As data subjects, you are entitled to exercise the rights set out in the GDPR and domestic data protection legislation.

The GDPR provides that data subjects have, subject to certain conditions and limits, a right of access, to rectify and erase their Personal Data collected by an AccorInvest Entity. Data subjects also have the right to data portability, to request its restriction or to object to the Processing of their Personal Data. In the limited circumstances where you may have provided your consent to the collection, Processing of your Personal Data for a specific purpose, you have the right to withdraw your consent for that specific Processing at any time.

These rights can be exercised by sending either:

1. An email to one of the following:
 - (i) the relevant country's data protection e-mail address as specified in the Appendix to this Customers Privacy Policy;
 - (ii) any other e-mail address indicated by the AccorInvest Entity that collected the Personal Data; or
 - (iii) group.dataprivacy@accorinvest.com;
2. A letter marked for the attention of the Legal department to either:
 - (i) the registered office address of the AccorInvest Entity that collected the Personal Data; or
 - (ii) AccorInvest Group SA
Data Privacy department
26A, boulevard Royal
L- 2449 Luxembourg, Grand Duchy of Luxembourg.

To protect the Personal Data of the data subject exercising their rights, AccorInvest will need to identify the data subject before responding to the request. If there are reasonable doubts about their identity, the data subject may be asked to provide a copy of an official identity document, such as an identity card or passport, to support his or her request.

The data subjects are entitled to file a complaint with a Supervisory Authority.

VIII. Glossary

AccorInvest Entity: all the legal entities of the AccorInvest Group, i.e., companies controlled directly or indirectly by AccorInvest Group SA.

AccorInvest: all AccorInvest Entities.

We reserve the right to update this Customers Privacy Policy at any time, and we will provide you with a new Customers Privacy Policy when we make any substantial updates. We may also notify you in other ways from time to time about the Processing of your Personal Data.

Last update: 14.12.2021

APPENDIX: DATA PRIVACY CONTACT E-MAIL ADDRESSES

- **France** : donnees.personnelles@accorinvest.com
- **UK**: gdpr_uk@accorinvest.com
- **Belgium, Netherlands, Luxembourg** : gdpr_benelux@accorinvest.com
- **Germany, Austria**: datenschutz@accorinvest.com
- **Portugal** : accorinvest.pt.protecao.dados@accorinvest.com
- **Spain**: accorinvest.sp.proteccion-datos@accorinvest.com
- **Poland**: pl.gdpr@accorinvest.com
- **Czech Republic**: cz.gdpr@accorinvest.com
- **Slovakia**: sk.gdpr@accorinvest.com
- **Hungary**: hu.gdpr@accorinvest.com
- **Romania**: ro.gdpr@accorinvest.com
- **Lithuania**: lt.gdpr@accorinvest.com
- **Italy and Greece**: it.gdpr@accorinvest.com